

activities to cause him injury. That his tort claims should be governed by the law of the location where he has elected to be is just as fair when the defendant is the Government as when the defendant is a private individual. But a soldier on active duty has no such choice and must serve any place or, under modern conditions, any number of places in quick succession in the forty-eight states, the Canal Zone, or Alaska, or Hawaii, or any other territory of the United States. That the geography of an injury should select the law to be applied to his tort claims makes no sense. We cannot ignore the fact that most states have abolished the common-law action for damages between employer and employee and superseded it with workmen's compensation statutes which provide, in most instances, the sole basis of liability. Absent this, or where such statutes are inapplicable, states have differing provisions as to limitations of liability and different doctrines as to assumption of risk, fellow-servant rules and contributory or comparative negligence. It would hardly be a rational plan of providing for those disabled in service by others in service to leave them dependent upon geographic considerations over which they have no control and to laws which fluctuate in existence and value.

The relationship between the Government and members of its armed forces is "distinctively federal in character," as this Court recognized in *United States v. Standard Oil Co.*, 332 U. S. 301, wherein the Government unsuccessfully sought to recover for losses incurred by virtue of injuries to a soldier. The considerations which lead to that decision apply with even greater force to this case:

" . . . To whatever extent state law may apply to govern the relations between soldiers or others in the armed forces and persons outside them or nonfederal governmental agencies, the scope, nature, legal incidents and consequences of the relation between

persons in service and the Government are fundamentally derived from federal sources and governed by federal authority. See *Tarble's Case*, 13 Wall. 397; *Kurtz v. Moffitt*, 115 U. S. 487. . . ." Pp. 305-306.

No federal law recognizes a recovery such as claimants seek. The Military Personnel Claims Act, 31 U. S. C. § 223b (now superseded by 28 U. S. C. § 2672), permitted recovery in some circumstances, but it specifically excluded claims of military personnel "incident to their service."

This Court, in deciding claims for wrongs incident to service under the Tort Claims Act, cannot escape attributing some bearing upon it to enactments by Congress which provide systems of simple, certain, and uniform compensation for injuries or death of those in armed services.¹² We might say that the claimant may (a) enjoy both types of recovery, or (b) elect which to pursue, thereby waiving the other, or (c) pursue both, crediting the larger liability with the proceeds of the smaller, or (d) that the compensation and pension remedy excludes the tort remedy. There is as much statutory authority for one as for another of these conclusions. If Congress had contemplated that this Tort Act would be held to apply in cases of this kind, it is difficult to see why it should have omitted any provision to adjust these two types of remedy to each other. The absence of any such adjustment is persuasive that there was no awareness that the Act might be interpreted to permit recovery for injuries incident to military service.

¹² 48 Stat. 8 (1933), as amended, 38 U. S. C. § 701 (1946); 48 Stat. 11 (1933), as amended, 38 U. S. C. § 718 (1946); 55 Stat. 608 (1941), 38 U. S. C. § 725 (1946); 57 Stat. 558 (1943), as amended, 38 U. S. C. § 731 (1946); 62 Stat. 1219, 1220 (1948), 38 U. S. C. (Supp. III) §§ 740, 741 (1950).

A soldier is at peculiar disadvantage in litigation.¹³ Lack of time and money, the difficulty if not impossibility of procuring witnesses, are only a few of the factors working to his disadvantage. And the few cases charging superior officers or the Government with neglect or misconduct which have been brought since the Tort Claims Act, of which the present are typical, have either been suits by widows or surviving dependents, or have been brought after the individual was discharged.¹⁴ The compensation system, which normally requires no litigation, is not negligible or niggardly, as these cases demonstrate. The recoveries compare extremely favorably with those provided by most workmen's compensation statutes. In the *Jefferson* case, the District Court considered actual and prospective payments by the Veterans' Administration as diminution of the verdict. Plaintiff received \$3,645.50 to the date of the court's computation and on estimated life expectancy under existing legislation would prospectively receive \$31,947 in addition. In the *Griggs* case, the widow, in the two-year period after her husband's death, received payments in excess of \$2,100. In addition, she received \$2,695, representing the six months' death gratuity under the Act of December 17, 1919, as amended, 41 Stat. 367, 57 Stat. 599, 10 U. S. C. § 903. It is estimated that her total future pension payments will aggregate \$18,000. Thus the widow will receive an amount in excess of \$22,000 from Government gratuities, whereas she sought and could seek under state law only \$15,000, the maximum permitted by Illinois for death.

¹³ Relief was provided in the Soldiers' and Sailors' Civil Relief Act of 1940, 54 Stat. 1178, 50 U. S. C. App. § 501 *et seq.*

¹⁴ *Brooks v. United States*, *supra* (discharged at time of suit); *Santana v. United States*, 175 F. 2d 320 (C. A. 1st Cir.) (suit by sole heirs); *Ostrander v. United States*, 178 F. 2d 923 (C. A. 2d Cir.) (suit by widow); *Samson v. United States*, 79 F. Supp. 406 (D. C. S. D. N. Y.) (suit by administrator); *Alansky v. Northwest Airlines*, 77 F. Supp. 556 (D. C. D. Mont.) (suit by widow and son).